

**HOUSE . . . . . No. 2370****The Commonwealth of Massachusetts**

PRESENTED BY:

***Christine P. Barber and Lindsay N. Sabadosa****To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

**An Act prioritizing patient access to care.**

PETITION OF:

| NAME:                           | DISTRICT/ADDRESS:                       | DATE ADDED:      |
|---------------------------------|-----------------------------------------|------------------|
| <i>Christine P. Barber</i>      | <i>34th Middlesex</i>                   | <i>1/16/2025</i> |
| <i>Lindsay N. Sabadosa</i>      | <i>1st Hampshire</i>                    | <i>1/16/2025</i> |
| <i>Sally P. Kerans</i>          | <i>13th Essex</i>                       | <i>1/30/2025</i> |
| <i>Kristin E. Kassner</i>       | <i>2nd Essex</i>                        | <i>1/30/2025</i> |
| <i>Rebecca L. Rausch</i>        | <i>Norfolk, Worcester and Middlesex</i> | <i>1/30/2025</i> |
| <i>Samantha Montaño</i>         | <i>15th Suffolk</i>                     | <i>1/30/2025</i> |
| <i>Natalie M. Higgins</i>       | <i>4th Worcester</i>                    | <i>1/30/2025</i> |
| <i>Simon Cataldo</i>            | <i>14th Middlesex</i>                   | <i>1/30/2025</i> |
| <i>Jennifer Balinsky Armini</i> | <i>8th Essex</i>                        | <i>2/12/2025</i> |
| <i>Mike Connolly</i>            | <i>26th Middlesex</i>                   | <i>4/2/2025</i>  |
| <i>Manny Cruz</i>               | <i>7th Essex</i>                        | <i>2/10/2025</i> |
| <i>Marjorie C. Decker</i>       | <i>25th Middlesex</i>                   | <i>2/14/2025</i> |
| <i>Mindy Domb</i>               | <i>3rd Hampshire</i>                    | <i>3/16/2025</i> |
| <i>Michelle M. DuBois</i>       | <i>10th Plymouth</i>                    | <i>4/16/2025</i> |
| <i>James B. Eldridge</i>        | <i>Middlesex and Worcester</i>          | <i>6/11/2025</i> |
| <i>Sean Garballey</i>           | <i>23rd Middlesex</i>                   | <i>5/27/2025</i> |
| <i>Carmine Lawrence Gentile</i> | <i>13th Middlesex</i>                   | <i>2/15/2025</i> |
| <i>Jessica Ann Giannino</i>     | <i>16th Suffolk</i>                     | <i>4/8/2025</i>  |

|                                |                       |                  |
|--------------------------------|-----------------------|------------------|
| <i>Homar Gómez</i>             | <i>2nd Hampshire</i>  | <i>7/21/2025</i> |
| <i>James K. Hawkins</i>        | <i>2nd Bristol</i>    | <i>2/11/2025</i> |
| <i>Tara T. Hong</i>            | <i>18th Middlesex</i> | <i>3/19/2025</i> |
| <i>Patrick Joseph Kearney</i>  | <i>4th Plymouth</i>   | <i>2/5/2025</i>  |
| <i>Mary S. Keefe</i>           | <i>15th Worcester</i> | <i>3/4/2025</i>  |
| <i>David Paul Linsky</i>       | <i>5th Middlesex</i>  | <i>2/13/2025</i> |
| <i>Jay D. Livingstone</i>      | <i>8th Suffolk</i>    | <i>3/6/2025</i>  |
| <i>John Francis Moran</i>      | <i>9th Suffolk</i>    | <i>5/28/2025</i> |
| <i>Steven Owens</i>            | <i>29th Middlesex</i> | <i>2/14/2025</i> |
| <i>Adrienne Pusateri Ramos</i> | <i>14th Essex</i>     | <i>3/6/2025</i>  |
| <i>Amy Mah Sangiolo</i>        | <i>11th Middlesex</i> | <i>3/25/2025</i> |
| <i>Margaret R. Scarsdale</i>   | <i>1st Middlesex</i>  | <i>3/3/2025</i>  |
| <i>Greg Schwartz</i>           | <i>12th Middlesex</i> | <i>9/12/2025</i> |
| <i>Danillo A. Sena</i>         | <i>37th Middlesex</i> | <i>2/3/2025</i>  |
| <i>Joshua Tarsky</i>           | <i>13th Norfolk</i>   | <i>9/21/2025</i> |
| <i>Erika Uytterhoeven</i>      | <i>27th Middlesex</i> | <i>2/6/2025</i>  |
| <i>Tommy Vitolo</i>            | <i>15th Norfolk</i>   | <i>4/25/2025</i> |
| <i>Susannah M. Whipps</i>      | <i>2nd Franklin</i>   | <i>2/12/2025</i> |

# HOUSE . . . . . No. 2370

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By Representatives Barber of Somerville and Sabadosa of Northampton, a petition (accompanied by bill, House, No. 2370) of Christine P. Barber, Lindsay N. Sabadosa and others relative to pregnancies existing for 24 weeks or more. Public Health.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act prioritizing patient access to care.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 12N of Chapter 112 of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by striking out, in lines 1 through 9, the words “no abortion  
3   may be performed except by a physician, and only if in the best medical judgment of the  
4   physician it is: (i) necessary to preserve the life of the patient; (ii) necessary to preserve the  
5   patient's physical or mental health; (iii) warranted because of a lethal fetal anomaly or diagnosis;  
6   or (iv) warranted because of a grave fetal diagnosis that indicates that the fetus is incompatible  
7   with sustained life outside of the uterus without extraordinary medical interventions.” and  
8   inserting in place thereof the following words:- an abortion may be performed when based upon  
9   the professional judgment of the physician.

10           SECTION 2. Section 12N1/2 of said chapter 112, as so appearing in the 2022 Official  
11   Edition, is hereby amended by striking out, in lines 1 through 4 the words “(a) Each circumstance  
12   permitting an abortion for a pregnancy that has existed for 24 weeks or more under section 12N

13 shall be considered independently by a treating physician and a patient or the patient's health care  
14 proxy.”

15 SECTION 3. Said section 12N1/2 of said chapter 112, as so appearing, is hereby further  
16 amended by striking out, in line 5, the words “a determination by” and inserting in place thereof  
17 the following words:- “the professional judgment of”.

18 SECTION 4. Said section 12N1/2 of said chapter 112, as so appearing, is hereby further  
19 amended by striking out subsection (b).

20 SECTION 5. Section 12P of said chapter 112, as so appearing in the 2022 Official  
21 Edition, is hereby further amended by striking out the second paragraph.